



March 13, 2024

Senator Nicholas P. Scutari
Senate President
67 Walnut Ave.
Clark, NJ 07066

Assemblyman Craig J. Coughlin
Assembly Speaker
569 Rahway Ave.
Woodbridge, NJ 07095

Senator Anthony M. Bucco
Republican Leader
75 Bloomfield Ave., Suite 302, 3rd Floor
Denville, NJ 07834

Assemblyman John DiMaio
Minority Leader
208 Mountain Ave., Suite 3
Hackettstown, NJ 07840

RE: **A.4045/S.2390** – relating to collection and use of public records – **OPPOSE**

Dear Members of the New Jersey Legislature:

On behalf of the Association of National Advertisers (ANA), I write to respectfully oppose **A.4045/S.2390** which would impede the responsible collection and use of public information for commercial purposes. The use of this information is vital to businesses of all sizes, including nonprofit organizations, and is a crucial component of the New Jersey economy and source of thousands of New Jersey jobs.

ANA is the nation's oldest and largest advertising trade association. Our members represent every aspect of the advertising industry, including more than 20,000 brands that collectively invest over \$400 billion in marketing and advertising every year. Our member companies are a significant driver of economic growth and job creation, supporting nearly 20 percent of the U.S. GDP in 2020 according to a recent IHS Markit study¹. In New Jersey alone, advertising is responsible for \$235.4 billion in sales activity and over 800,000 jobs, according to the same study.

Information belonging to the public found in state and local government databases often serves as the source of data used for responsible marketing purposes. A.4045/S.2390 would negatively impact virtually every business and nonprofit that uses any part of this public information for responsible marketing purposes.

Responsible collection and use of marketing data is essential to today's small businesses and New Jersey's information economy by helping them grow and compete in new markets without the need to amass their own data from scratch. Online advertising in particular draws on data to support a wide variety of services that are available to consumers for free or at a low cost and helps small businesses succeed against larger competitors.

¹ The Economic Impact of Advertising on the US Economy, 2018-2026, IHS Markit, November 2021
(<https://www.ana.net/content/show/id/adtax>)

Moreover, New Jersey's nonprofit organizations rely on marketing data, including information derived from public records, to efficiently identify those persons who are sympathetic to their mission and will likely respond to a fundraising solicitation or volunteer campaign. If enacted, A.4045/S.2390 will impair nonprofits' efforts to pursue their mission and support at-risk populations and those in need.

Enacting A.4045/S.2390 to protect the public is unnecessary because data used for advertising and marketing is already set to be governed by New Jersey's comprehensive privacy law which passed last session. Once effective, this law will provide New Jerseyans numerous rights regarding their personal information. All New Jersey consumers will have the ability, among other things, to request companies delete or restrict from sharing their personal information.

Because it unduly burdens New Jersey's small businesses and nonprofits, negatively impacts New Jersey's data-driven economy and jobs, and is unnecessary, the ANA respectfully opposes A.4045/S.2390.

Sincerely,

A handwritten signature in blue ink, appearing to read "Chris Oswald", is positioned above the printed name.

Christopher Oswald
EVP, Head of Law, Ethics, and Government Relations
Association of National Advertisers (ANA)